

H C J D A 38.

JUDGMENT SHEET
IN THE LAHORE HIGH COURT,
MULTAN BENCH, MULTAN
JUDICIAL DEPARTMENT

Cr. Appeal No.950 of 2016

Muhammad Yousaf v. The State, etc.

JUDGMENT

Date of hearing **26.10.2021**

Appellant by Mr. Muhammad Shahbaz Khan, Advocate.

Complainant Mr. Israr Hayat Sulehria, Advocate.
by

State by Malik Mudassir Ali, Deputy Prosecutor
General.

MUHAMMAD WAHEED KHAN, J.- This single judgment shall dispose of the instant appeal as well as Crl. Revision No.217/2017, as both are against the same judgment. Appellant Muhammad Yousaf has challenged his conviction and sentence awarded to him by the learned Additional Sessions Judge, Burewala, District Vehari vide judgment dated 28.11.2016 in case FIR No.829/2014 dated 24.12.2014 registered u/s 302, PPC at Police Station Gaggoo Burewala, District Vehari, whereby he was convicted and sentenced as under:-

Under section 302(b) PPC awarded imprisonment for life. He was also directed to pay Rs.1,00,000/- to the legal heirs of deceased Mst. Samina Kausar as compensation u/s 544-A Cr.P.C., in case of default to further undergo for a period of six months Simple Imprisonment.

Benefit u/s 382-B Cr.P.C. was also extended to him.

2. Brief facts of the case as narrated by the complainant Ghulam Farid in complaint Exh.PA/1 are that his sister Mst. Samina Kausar (deceased) was married to Shabbir Yousaf, from that wedlock a female child was born and her husband Shabbir Yousaf went to Saudi Arabia for his livelihood, leaving her with her father-in-law, where-after a domestic dispute had arisen, which she told the complainant but he advised his sister to inhabit in her house. On 24.12.2014, the complainant along with his cousins Muhammad Naveed and Muhammad Shafique reached at the house of his sister at about 09:30 a.m. at Chak No.291/EB, Burewala and when they entered the door of house of his sister, saw that Muhammad Youasf was hitting on her head with Mohla and blood was oozing out of her head, due to which she succumbed to the injuries.

3. After registration of case, matter was investigated and report u/s 173 Cr.P.C. was submitted before the learned trial Court while declaring the appellant as guilty. Thereafter, formal charge was framed against him, to which he pleaded not guilty and claimed trial. The prosecution in order to prove its case produced as many as nine witnesses and after producing certain documents closed its evidence. Ocular account was furnished by Ghulam Farid complainant and Muhammad Naveed, who appeared as PW-6 and PW-7. Investigating Officer of case Mushtaq Hussain SI appeared as PW-9. Statement of lady Dr. Samina Maqbool was not recorded, as she left Pakistan. The remaining witnesses were of formal in nature and prosecution after producing certain documents closed its evidence. After completion of prosecution evidence, statement of appellant was recorded u/s 342 Cr.P.C., in which he denied all the allegations leveled against him by the prosecution. He neither opted to appear as his own witness u/s 340 (2) Cr.P.C., nor produced any

defence evidence. After evaluating prosecution evidence available on record, learned trial Court found the prosecution version correct beyond any shadow of doubt, which resulted into convictions and sentence of the appellant in the afore stated terms.

4. In support of the instant appeal, learned counsel for the appellant submits that the prosecution story is inherently flawed, hence, failed to inspire confidence, as both the eye-witnesses were chance witnesses as they have failed to explain the reasons qua their availability at the crime scene. The motive advanced by the prosecution has been disbelieved by the learned Trial Court and the recovery of weapon of offence (danda) is inconsequential. So, under the circumstances, there was no occasion for the learned Trial Court to convict the appellant. Lastly prayed that by accepting the instant appeal, the appellant may be acquitted of the charge.

5. Conversely, learned Deputy Prosecutor General assisted by the learned counsel for the complainant submitted that the prosecution remained successful to prove the case against the appellant beyond “reasonable doubt”. Both the eye-witnesses have plausibly explained their presence at the place of occurrence and their evidence was duly corroborated by the recovery of weapon of offence and prayed that the appeal of the appellant be dismissed.

6. In support of the criminal revision, learned counsel for the complainant has argued that as the prosecution has proved its case against respondent Muhammad Yousaf beyond reasonable doubt, therefore, the sentence awarded to him be enhanced from life imprisonment to death penalty.

7. I have heard arguments and perused the record with the assistance of learned counsel for the parties.

8. It is noted that the prosecution's case mainly hinges upon the ocular account furnished by complainant Ghulam Fareed (PW.6) and the same was supplemented by Muhammad Naveed (PW.7) and the medical evidence. The prosecution also set-up motive in the F.I.R. and during the course of investigation weapon of offence (bloodstained danda) was recovered at the instance of the appellant. In order to prove the ocular account, complainant Ghulam Fareed (PW.6) stated that his sister was married with one Shabbir Yousaf and her husband used to live in Saudi Arabia. His sister Samina Kausar deceased used to live in her house with her father-in-law, the appellant in Chak No.291/EB, Tehsil Burewala, District Vehari. The witness further stated that his sister informed him that her father-in-law used to tease her. On 24.12.2014, he along with Muhammad Naveed (PW.7) and Muhammad Shafique (given-up PW.) reached in the house of his sister at 09:30 a.m. The moment they entered into her house, they heard hue and cry and in their view, the appellant had hit multiple blows of club (موہلہ). On seeing the PWs, the appellant managed to flee away. The police met the complainant at Qenchi More, where he got his statement (Exh.PA/1) recorded, on the basis of which formal F.I.R. (Exh.PA) was chalked out. The complainant is the real brother of the deceased, whereas the other eye-witness Muhammad Naveed (PW.7) was their maternal cousin (پہوپہی زاد). While narrating the incident Muhammad Naveed (PW.7) also deposed in almost in the similar manner, whereas the 3rd witness Muhammad Shafique was not produced by the prosecution and was given-up as being un-necessary.

9. I have straightway observed that both the eye-witnesses hail from Tehsil Sumandari, District Faisalabad, which is far-away place from the crime scene. Neither the complainant while lodging the F.I.R. nor PW.7 in his statement u/s 161 Cr.P.C. had given their reasoning/opportunity to visit the house of the deceased, however, while deposing before the learned Trial Court, Ghulam Fareed (PW.6) had improved his version by introducing the following fact:-

“On 23.12.2014 I loaded my truck with raw material relating to bricks kiln from Sumandari to Burewala and reached at brick-kiln in Burewala and the truck was unloaded at the brick-kiln. On the next day I along with my cousin Muhammad Naveed and Muhammad Shafique PWs reached at the house of my sister at about 09:30 a.m. at Chak 291/EB Burewala.

This portion of his testimony was duly confronted by the learned defence counsel in the following terms:-

“I am literate. Whatever I have recorded in my statement before this court on 24.09.2016, I got recorded the same statement before I.O. in Exh.PA/1. I had not got recorded in Exh.PA that on 23.12.2014 I loaded my truck with raw material relating to brick kiln from Samnundri to Burewala and reached brick-kiln Burewala and truck was unloaded at the brick-kiln.”

10. On going through the testimony of other eye-witness, namely, Muhammad Naveed (PW-7), I noted that he had not said a single word about the loading of truck and to reach the brick-kiln at Burewala, one day prior to the occurrence, meaning thereby that the complainant (PW.6) had materially improved his version and there is no cavil with the proposition that deliberate and dishonest improvement made by a witness in a statement to strengthen the prosecution case, cause serious doubts in his

veracity and makes him un-trustworthy and un-reliable. It is quite unsafe to rely on testimony of such witness even any fact deposed by him other than improvement, unless it receives some corroboration from other piece of reliable evidence. Reliance in this regard may be placed on the cases of *“NAVEED ASGHAR and 2 others v. The State (PLD 2021 S.C. 600), “MUHAMMAD ARIF v. The STATE” (2019 SCMR 631), “ABDUL JABBAR and another v. The STATE” (2019 SCMR 129) and “MUHAMMAD MANSHA v. The STATE” (2018 SCMR 772).*

11. So, in these circumstances, I hold that the improvements had affected the veracity of the prosecution evidence, rendering it un-safe to rely upon the same. More-over, the testimony of both the witnesses was not in consonance with each other about the reasoning/occasion to visit the house of the deceased. Even otherwise, the story of reaching the prosecution witnesses at the crime scene exactly at the same time, when she was being beaten by her father-in-law, is not comprehend-able and no implicit reliance can be placed upon the claim of the witnesses. More-over, according to the story of the prosecution, in presence of three adult and healthy witnesses, the accused, who was 70/80 years of age, managed to flee away, is hard to digest especially when he was not armed with any firearm. So, in all eventualities, the eye-witnesses are categorized as chance-witnesses. Both the eye-witnesses were not only closely related but they were also chance-witnesses, who have failed to explain regarding the reasons of their presence at the crime scene. So, without having corroborative evidence to support the version of the chance-witnesses, it has to be excluded from the consideration. Reliance in this regard is placed on the judgment passed in case of *“MUHAMMAD ASHRAF alias ACCHU v.*

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The STATE (2019 SCMR 652), in which the august Supreme Court of Pakistan observed as under;-

“It is well settled that benefit of slightest doubt must go to an accused and in a case where the Court reaches a conclusion that eye-witnesses were chance witnesses; they had not witnessed the occurrence and the prosecution story is concocted by the PWs, then the case of the accused merits plain acquittal.”

12. As far as the medical evidence is concerned, it is admitted proposition that the same does not advance any corroboration to the ocular version, rather the same could be supportive in nature. This evidence proves only the factum that the deceased received such and such injuries, which caused her death and in nowhere it does indicate, who had inflicted the injuries. So, the medical evidence in this case had hardly advanced the case of the prosecution.

13. As far as the motive part of the incident is concerned, that has already been disbelieved by the learned Trial Court while giving cogent reasons.

14. So far as recovery of weapon of offence bloodstained danda (موہلہ) is concerned, admittedly, the same was sent for forensic analysis and according to the report of Punjab Forensic Science Agency (Exh.PJ), the same was found to be stained with human blood. The august Supreme Court of Pakistan while highlighting the status of such like recovery in case of “IRFAN ALI v. The State” (2015 SCMR 840) had observed as under:-

“When no grouping of the blood was made with the bloodstained clothes of the deceased to create a nexus between the two, the same is of no help to the prosecution”.

Similarly, in case of *“KHALID JAVED v. The STATE”* (2003 SCMR 1419), the august Supreme Court of Pakistan discarded the prosecution evidence of recovery of bloodstained weapon of offence i.e. dagger and knife and bloodstained clothes of the accused persons in absence of matching report of the bloodstained with the blood grouping of the deceased. The similar principle was held by the august Supreme Court of Pakistan in case of *“Muhammad Asif v. The State”* (2017 SCMR 486) & *“AAMER NADEEM v. The STATE”* (2011 SCMR 1233) and this principle was reiterated by the august Supreme Court of Pakistan in case of *“NAVEED ASGHAR and 2 others v. The STATE”* (PLD 2021 S.C. 600). Since no ‘matching report’ of the blood found on the recovery of weapon of offence danda (موہلہ) in this case with the clothes of the deceased and the bloodstained earth is available on record, so, the recovery in this case cannot be considered as the corroborative piece of evidence against the appellant.

15. So, for the foregoing reasons, when the witnesses have been categorized as chance-witnesses, their unusual conduct at the crime scene, where they had not tried to apprehend the assailant/appellant, motive set-up by the prosecution has already been discarded by the learned Trial Court and the recovery of weapon of offence is rendered to be inconsequential, I observe that the prosecution remained failed to prove its case against the appellant “beyond reasonable shadow of doubt”, so, the impugned judgment, whereby the appellant was convicted and sentenced cannot be allowed to sustain. Resultantly, this appeal is **allowed** and the conviction and sentence awarded to the appellant is set-aside. He is acquitted of the charge(s). He be released forthwith if not required to be detained in any other case.

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16. As far as the criminal revision petition filed by the complainant for enhancement of the sentence of respondent Muhammad Yousaf is concerned, as the prosecution evidence has already been disbelieved in supra discussion, so, there is no question of enhancement of the quantum of sentence, therefore, CrI. Revision No.217 of 2017 filed by the complainant is hereby **dismissed**.

(MUHAMMAD WAHEED KHAN)
JUDGE

Approved for reporting.

JUDGE

Mumtaz